

Regarding post recruitment in connection with the Government's No-Objection Certificate for filling up vacant posts in teaching and non-teaching cadres in aided special schools, attached hostels, workshops (training centers), and children's homes for orphan mentally challenged persons in the State.

GOVERNMENT OF MAHARASHTRA

Persons with Disabilities Welfare Department,

Government Circular No.: Yachika-2021/C.R.13/D.K.-1

31, 32, 35A, Mittal Tower, A-Wing, Third Floor,

Barrister Rajni Patel Marg, Nariman Point,

Mumbai-400 021.

Date: 31st October, 2023.

CIRCULAR

As per the directions in Para. No. 59 of the order dated 28th October, 2021 in Writ Petition No. 132/2016 of the Hon'ble Supreme Court, as well as in connection with the hearing of the Suo Moto Petition before the Hon'ble State Human Rights Commission, regarding freeing the vacant posts of teaching and non-teaching cadres in aided special schools, attached hostels, workshops (training centers), and children's homes for orphan mentally challenged persons in the State from the recruitment restrictions mentioned in the Finance Department's Government Resolution dated 4th May, 2020; relaxation has been granted for filling up vacant posts in teaching cadre in aided special schools and attached workshops for persons with disabilities in the State as per Meeting No. 1/2023 dated 18th January, 2023 of the Sub-Committee of the Finance Department, and vacant posts in teaching/non-teaching cadres in disability initiatives as per Meeting No. 3/2023 dated 20th March, 2023. In that regard, Persons with Disabilities Welfare Department, Government Resolution No. Yachika-2021/C.R.13/D.K.-1, dated 26th July, 2023 has been issued.

2. Pursuant to the said Government Resolution, online applications are being invited through the Aaple Sarkar portal from aided special schools, attached hostels, workshops (training centers), and children's homes for orphan mentally challenged persons for persons with disabilities in the State for filling up vacant posts in teaching cadre permissible as per the staffing pattern of Government Resolution dated 18th August, 2004 in teaching and non-teaching cadres in aided special schools, attached hostels, workshops (training centers), and children's homes for orphan mentally challenged persons for persons with disabilities in the State. The No-Objection Certificates issued by the Government for filling up vacant posts in the institution upon inspection of applications submitted by institutions shall be subject to fulfillment of the following terms and conditions. In accordance therewith, the concerned shall ensure that terms and conditions are fulfilled while filling posts as per the No-Objection Certificate.

Terms and Conditions:

- i. It shall be mandatory for the concerned School / Workshop Head and District Social Welfare Officer, Zilla Parishad / Assistant Commissioner, Mumbai City/Suburbs to personally verify that the said post is sanctioned as per the previous staffing pattern of the School / Workshop and is permissible as per the revised employee staffing pattern dated 18.08.2004. (This condition will not apply to schools / workshops sanctioned on grant-in-aid basis by the Government after the Government Resolution dated 18.08.2004.)

- ii. While granting permission for teaching and non-teaching post recruitment, the said post must be vacant on the date 26th July, 2023. The concerned District Social Welfare Officer should ensure that recruitment is done only on the said vacant post. Under no circumstances should posts that became vacant after this date be allowed for recruitment. If such appointments are made, the concerned District Social Welfare Officer will be held entirely responsible.
- iii. While conducting post recruitment for teaching and non-teaching posts, reservation must be determined from the Backward Class Reservation Cell according to the new reservation policy, and post recruitment should be conducted only as per the roster verified after determining such reservation.
- iv. For post recruitment in teaching and non-teaching cadres, reservation must be determined by the Backward Class Reservation Cell. Posts determined under such reservation should be filled strictly according to the roster. Recruitment should be carried out only after verifying category-wise social reservation, Economically Weaker Section (EWS) reservation in addition to social reservation, and horizontal reservation (Women, Sportspersons, Persons with Disabilities, etc.).
- v. For teaching and non-teaching post recruitment, terms and service recruitment rules specified in Social Justice and Special Assistance Department, Government Resolution No. EDD-2018/C.R.288/A.K.-1, dated 18th July, 2018 and Social Justice and Special Assistance Department, Government Corrigendum No. EDD-2018/C.R.288/A.K.-1, dated 5th February, 2019 shall be mandatory to follow. Otherwise, the said recruitment process will be deemed illegal. Also, legal action as per rules will be taken against those concerned. However, if the institution issues appointment orders bypassing the prescribed process and the concerned District Social Welfare Officer, Zilla Parishad / Assistant Commissioner, Mumbai City/Suburbs grants approval to it, the concerned District Social Welfare Officer, Assistant Commissioner, Mumbai City/Suburbs will be held entirely responsible.
- vi. While filling teaching posts, strict compliance shall be ensured regarding prescribed provisions in Social Justice and Special Assistance Department, Government Resolution No. EDD-2018/C.R.288/A.K.-1, dated 18th July, 2018, as well as Social Justice and Special Assistance Department, Government Corrigendum No. EDD-2018/C.R.288/A.K.-1, dated 5th February, 2019, and required educational qualifications/eligibility for posts specified in Social Justice and Special Assistance Department, Government Resolution No. EDD-2003/C.R.340/Part-3/Sudhar-2, dated 18th August, 2004, and Government Resolutions issued by the Government from time to time.
- vii. While making appointments to the said posts, selection must be made through the prescribed Selection Committee constituted pursuant to Government Resolution under prevalent laws. Recruitment made without following the prescribed methodology will be cancelled, and if any court case arises in future regarding the appointment, entire responsibility for the same shall lie with the concerned institution, District Social Welfare Officer / Assistant Commissioner, Mumbai City/Suburbs.
- viii. For the selection process of teaching and non-teaching posts, the responsibility to determine eligibility of candidates after considering provisions in prevalent rules shall lie with the concerned institution. Furthermore, if appointment is given bypassing prevalent rules, the concerned District Social Welfare Officer / Assistant Commissioner, Mumbai City/Suburbs / Commissioner, Persons with Disabilities Welfare / concerned institution / Principal / Management shall be held entirely responsible.
- ix. If employees working in posts of teaching and non-teaching cadres are posted elsewhere on deputation, no fresh appointment shall be made under any circumstances against such vacant posts.

Such posts should not be included in recruitment proposals. If done so, entire responsibility for the same shall lie with the concerned institution.

- x. If an employee working in a teaching or non-teaching post holds a lien on the post, no fresh appointment shall be made under any circumstances on the said vacant post until the lien comes to an end; and if appointments are made on such posts, Government approval and grant will not be admissible for such appointment and the institution shall be entirely responsible for the same.
 - xi. While filling teaching and non-teaching posts, qualifications, experience, and professional eligibility prescribed by the Government of Maharashtra from time to time shall be strictly followed and post recruitment should be conducted accordingly. In case of any irregularity in this regard, the District Social Welfare Officer / Assistant Commissioner, Mumbai City/Suburbs / Commissioner, Persons with Disabilities Welfare / Management of the institution shall be held entirely responsible.
 - xii. The institution must initiate the direct recruitment process afresh through the No-Objection Certificate granted for disability initiatives. If the institution selects and appoints employees previously appointed without a No-Objection Certificate, the liability of past service and salary for such service will not rest with the Government.
 - xiii. Employees appointed following prescribed rules and procedures shall be deemed to have joined service from the date on which they report for duty under this process.
 - xiv. Action to fill posts from the date of receipt of the No-Objection Certificate must be completed within three months from the date of the No-Objection Certificate. After three months, the said No-Objection Certificate shall automatically be deemed cancelled. After expiry of the said three-month period, the institution will be required to submit a fresh application along with fees on the Aaple Sarkar portal for filling up the said vacant posts.
4. This Government Circular is available on the website of the Government of Maharashtra www.maharashtra.gov.in and its Computer Code is 202310311148111635. This order is being issued by certifying with a digital signature.

By order and in the name of the Governor of Maharashtra,

(V. P. Ghodke)

Deputy Secretary, Government of Maharashtra

Copy to,

- 1) Commissioner, Persons with Disabilities Welfare Commissionerate, Maharashtra State, Pune.,
- 2) All Regional Deputy Commissioners, Social Welfare Department,. (Through Commissioner, Persons with Disabilities Welfare, Pune)
- 3) All District Social Welfare Officers, Zilla Parishad (Through Commissioner, Persons with Disabilities Welfare, Pune)
- 4) Assistant Commissioner, Mumbai City / Mumbai Suburbs,. (Through Commissioner, Persons with Disabilities Welfare, Pune)
- 5) All Concerned Institutions (Through Concerned District Social Welfare Officer, Zilla Parishad)
- 6) Select File (D.K.-1).